

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

DONALD LEE, Moving Party

v.

**SACRAMENTO CITY UNIFIED SCHOOL DISTRICT, Responding
Party**

OAH No. 2025071105

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

Administrative Law Judge Traci C. Belmore, Office of Administrative Hearings (OAH), State of California, heard oral argument on this matter on August 29, 2025, by videoconference.

Katrina Gould, Langenkamp, Curtis & Price, LLP, represented moving party, Donald Lee.

Seth Eckstein, Fagen, Friedman, & Fulfroost, LLP, represented responding party, Sacramento City Unified School District (district).

The record was closed, and the matter was submitted for decision on August 29, 2025.

Background

1. On July 1, 2025, the district's Chief Human Resources Officer and Lead Negotiator signed Notice of Intent to Dismiss, Placement on Immediate Unpaid Suspension Pending Outcome of Disciplinary Proceedings, and Statement of Charges (Statement of Charges) seeking the immediate suspension without pay and dismissal of Donald Lee, a permanent certificated employee. Mr. Lee was served with the Statement of Charges on that date.

2. The Statement of Charges alleges the following causes for dismissal: immoral conduct, dishonesty, evident unfitness for service and persistent violation of or refusal to obey state school laws or regulations prescribed by the district's governing board. (Ed. Code, § 44932, subds. (a)(1), (a)(4), (a)(6) & (a)(8).)¹ The Statement of Charges also notified Mr. Lee of the district's intent to immediately suspend him without pay based on immoral conduct. (§ 44939, subd. (b).)

3. On July 30, 2025, Mr. Lee filed a Motion for Immediate Reversal of Suspension (motion) with OAH, pursuant to Section 44939, subdivision (c)(1), alleging that the Statement of Charges does not set forth facts sufficient to support an allegation of immoral conduct, which is necessary in this case to sustain the suspension. The district filed an opposition to the motion on August 18, 2025.

¹ All future statutory references are to the Education Code.

4. On August 29, 2025, a videoconference was held, during which the parties were invited to present any additional oral arguments.

Allegations in the Statement of Charges

5. The allegations in the Statement of Charges relate solely to Mr. Lee's conduct as a tenth grade English teacher at John F. Kennedy High School. The relevant factual allegations cited in the Statement of Charges are as follows.

6. On several occasions, Mr. Lee called students "bitches" while in the classroom.

7. On August 21, 2024, Mr. Lee called a student a "bitch" after she refused to raise her hand in class.

8. On August 22, 2024, Mr. Lee told the students "If you ask me a question like 'What's my dick size', I'm going to say I don't know. But if you ask my favorite sexual position, I'm going to be like 'ask your mom.'"

9. Mr. Lee used profanity and had a "reputation among students for using excessively foul language."

10. On August 19, 2024, Mr. Lee refused to allow a student to use the restroom until the student exhibited evidence of extreme discomfort.

11. On September 11, 2024, the district interviewed Mr. Lee regarding the allegations above. Mr. Lee admitted that he used profanity in the classroom and acknowledged that it was a "problem." He denied making any comment about his penis. When specifically asked if he made the statement about asking the students' mother about his favorite sexual position, Mr. Lee "answered obliquely" that he did

"use 'your mamma' jokes" when students ask questions that are unrelated to the curriculum. Mr. Lee admitted that he has refused to allow students to use the restroom. The district concluded that Mr. Lee's denials were not credible.

The Parties' Arguments

12. Mr. Lee argued that the Statement of Charges does not cite any behavior that rises to the level of immoral conduct and states that the only published cases sustaining immoral conduct involved "sexual misconduct, drugs, fraud or other intentional criminal conduct, and intention discrimination against students based on a protected class." Mr. Lee then attempts to distinguish *Crawford v. Commission on Professional Competence* (2020) 53 Cal.App.5th 327, which held that immoral conduct is not limited to those categories, by stating that *Crawford* involved conduct that "garnered widespread national media attention, generated outrage in the community and hundreds of complaints to the school district." He cites two cases to support his contention that his conduct does not rise to the level of immoral conduct.

13. The district argued that it had pled facts in the Statement of Charges that constitute a basis for Mr. Lee's immediate suspension for immoral conduct also citing *Crawford*. The district argued that Mr. Lee's conduct "not only negatively effects students but it ruins the foundation of trust between teacher and student." The district maintained that in making "sexually suggestive comments to students and using profanity when speaking to students" Mr. Lee created a "harmful, unsafe, and unwelcoming environment" rendering him unfit to teach and justifying his immediate suspension on grounds of immoral conduct.

14. In reply and during oral argument, Mr. Lee argued that while his conduct was certainly objectionable and may even have been unprofessional it did not constitute immoral conduct.

Applicable Law

15. Section 44939, subdivision (b), authorizes the district to suspend an employee without pay pending the outcome of the hearing if the district charges immoral conduct. Subdivision (c)(1), allows the employee to file a motion for relief from the suspension and requires review of this motion to be "limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section."

Evaluation

16. A review of a motion to reverse immediate suspension is limited to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute immoral conduct.

17. There is broad discretion in determining what constitutes immoral conduct in the context of teacher disciplinary matters. (*California Teachers Association v. State of California* (1999) 20 Cal.4th 327.) Immoral conduct has been defined by the courts as follows:

[T]hat which is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as wilful, flagrant, or

shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. (*Palo Verde etc. School Dist. v. Hensey* (1970) 9 Cal.App.3d 967, 972, citing *Bd. of Education of San Francisco Unified School Dist. v. Weiland*, 179 Cal. App 2d 808, 811.)

18. Immoral conduct alone cannot serve as a basis to terminate a teacher unless the conduct indicates the teacher is also unfit to teach. (*Palo Verde, supra*, at p. 972.) The definition of immoral or unprofessional conduct must be considered in conjunction with the unique position of public-school teachers, upon whom are imposed "responsibilities and limitations on freedom of action which do not exist in regard to other callings." (*Board of Trustees v. Stubblefield*, 16 Cal.App.3d 820, 824.)

19. In *Crawford, supra*, at p. 337, the court rejected Ms. Crawford's contention that there are three fixed categories of conduct that constitute "immoral conduct" as a matter of law. Instead, the court held the term "immoral conduct" in Section 44932, "stretch[es] over so wide a range" of conduct that it "embrace[s] an unlimited area of conduct." (*Ibid.*, citing *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 224-225.) Citing *Morrison, supra*, at p. 224, the court added, the term must be "'considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general public . . . more specifically in this case, *conduct which is hostile to the welfare of the school community.*'" [citations] (*Crawford*, at p. 337 [italics in original].) "A teacher's conduct is therefore "immoral" under section 44932, subdivision (a)(1), when it negatively affects the school community in a way that demonstrates the teacher is 'unfit to teach.'" (*Ibid.* [footnote omitted].) The court

then addressed Ms. Crawford's argument that the term should be given a colloquial interpretation that includes only conduct that would be deemed "immoral" in an everyday sense, such as criminal activity and using profanity or racial epithets. (*Id.* at p. 338.) The court wrote:

We disagree. Immoral conduct "stretch[es] over so wide a range that [it] embrace[s] an unlimited area of conduct."
([*Morrison, supra*, at pp. 224-225].) Thus, "the proper criteria is fitness to teach" because the term "immoral conduct" is "so broad and vague" that it is "constitutionally infirm."
([citation].) (*Ibid.*)

20. The district alleges in the Statement of Charges that Mr. Lee called multiple students "bitch," refused to allow a student to go to the restroom until the student exhibited extreme discomfort, and made lewd, sexual comments in class.

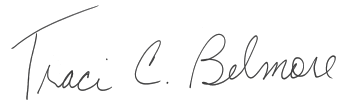
Accordingly, under the rationale of *Crawford*, because immoral conduct could "embrace an unlimited area of conduct," the fact that there are no reported cases upholding immoral conduct similar to the factual situation of this case, does not, as a matter of law, preclude the Commission on Professional Competence (CPC) from finding immoral conduct in this case. So long as the CPC could, after application of the *Morrison* factors, find that Mr. Lee's conduct negatively affected the school community in a way that demonstrates he is "unfit to teach."

Mr. Lee's motion must be denied. The parties' written submissions and oral arguments having been considered, the district alleged sufficient facts in the Statement of Charges that, if true, could constitute immoral conduct and support immediate suspension under section 44939, subdivision (b).

ORDER

The motion for immediate reversal of suspension is denied.

DATE: September 8, 2025

A handwritten signature in cursive script that reads "Traci C. Belmore".

TRACI C. BELMORE

Administrative Law Judge

Office of Administrative Hearings